



POLICE DEPARTMENT

January 2, 2024

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In the Matter of the Charges and Specifications	:
- against -	:
	:
Police Officer Eugene Choi	:
Tax Registry No. 941552	:
24 Precinct	:
	:
Police Officer Thomas Lee	:
Tax Registry No. 947169	:
24 Precinct	:
	:
Sergeant Kevin Cameron	:
Tax Registry No. 954594	:
Manhattan Crime Analysis Unit	:
	:
----- X	

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Theresa Freitas, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondents: Michael Martinez, Esq.
Worth, Longworth & London, LLP
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To:
HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2022-24799

1. Police Officer Eugene Choi, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 6, Paragraph 20

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Eugene Choi, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) property without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

(now encompassed by A.G. 304-06, Page 1, Paragraph 1)

PUBLIC CONTACT
PROHIBITED CONDUCT

3. Police Officer Eugene Choi, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

P.G. 203-09, Page 1, Paragraph 1
(now encompassed by A.G. 304-11)

PUBLIC CONTACT –
GENERAL

Disciplinary Case No. 2022-24800

1. Police Officer Thomas Lee, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 6, Paragraph 20

INVESTIGATIVE
ENCOUNTERS

2. Police Officer Thomas Lee, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) property without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT

(now encompassed by A.G. 304-06, Page 1, Paragraph 1) PROHIBITED CONDUCT

3. Police Officer Thomas Lee, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

P.G. 203-09, Page 1, Paragraph 1
(now encompassed by A.G. 304-11)

PUBLIC CONTACT –
GENERAL

Disciplinary Case No. 2022-24801

1. Sergeant Kevin Cameron, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

P.G. 212-11, Page 6, Paragraph 20

INVESTIGATIVE
ENCOUNTERS

2. Sergeant Kevin Cameron, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity § 87(2)(b), New York County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) property without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by A.G. 304-06, Page 1, Paragraph 1) PUBLIC CONTACT
PROHIBITED CONDUCT

3. Sergeant Kevin Cameron, on or about March 9, 2020, at approximately 0020 hours while assigned to 24 Precinct and on duty, in the vicinity § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

P.G. 203-09, Page 1, Paragraph 1
(now encompassed by A.G. 304-11)

PUBLIC CONTACT –
GENERAL

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on November 7, 2023.

Respondents, through their counsel, entered a plea of Not Guilty to the subject charges. The

CCRB called § 87(2)(b) and entered videos into evidence. Respondents testified on their own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondents Not Guilty of Specifications 1 and 2, and Guilty of Specification 3. I recommend a penalty the forfeiture of three (3) vacation days for each Respondent.

ANALYSIS

This case arises out of a complaint made by § 87(2)(b) a Manhattan dentist and owner of § 87(2)(b) regarding an interaction he had with Respondents on March 9, 2020. § 87(2)(b) was working in his office late that evening, well after his dental practice was closed for business. § 87(2)(b) had just taken out the trash and soon after he was back in his office, the Respondents knocked on the door and asked him to identify himself. § 87(2)(b) had used his key to enter the premises and he had not called 911 nor was there an emergency, to his knowledge, that required police assistance, so he was unsure of why the police were responding to his office. The facts surrounding the police encounter are virtually undisputed with the exception of how the incident was perceived by each side.

On March 9, 2020, Respondents were working a midnight tour within the confines of the 24 Precinct. The complainant, § 87(2)(b) dental practice, § 87(2)(b) is located in Sector C of the 24 Precinct; Respondents Choi and Lee were assigned to patrol Sector C. They testified that a common precinct condition they dealt with during that tour was commercial burglaries.

On the date in question, § 87(2)(b) dental practice was open from 1200 hours to 2200 hours. § 87(2)(b) testified that on the date of the incident he was working in the office after hours. His dental practice is located at § 87(2)(b) and is a street-level storefront. He

explained he was alone and he kept the lights off because he did not want to draw attention to the office or attract walk-up patients since it was closed. (Tr. 20, 27) He left the office to take garbage out and used the front door to re-enter using his key; § 87(2)(b) had left the office with his sweatshirt hood off, and returned to the office with the sweatshirt hood covering his head. (CCRB Ex. 6 at 00:00-00:42)

Approximately one minute after § 87(2)(b) returned, Respondents Choi and Lee can be seen on video pulling up in front of the office in a marked RMP and approaching the door, knocking on the window, and pushing the intercom button. (CCRB Ex. 6 at 01:26-01:49) § 87(2)(b) maintains an advanced security system at his place of business that was in good working order that night. He testified that he observed the officers approach the office while he was in the reception area, and he responded on the intercom when they rang the bell. He informed them via the intercom that he was the dentist who owned the practice. According to § 87(2)(b) the Respondents requested that he come outside, despite the fact no one called the police, there were no warrants, and an alarm did not go off. (Tr. 18-19, 21-23)

CCRB Exhibit 5 is surveillance video from inside of § 87(2)(b) dental practice. The video angle is taken from behind the front desk/reception station of the practice, and captures that area as well as a partial view of the front door. Upon entering the front door of the office, there is a waiting area that was dimly lit by an illuminated logo on the wall. There is a wall and door between the waiting area and the rest of the office. The wall between the waiting area and office has a small window in it. There is also a door with opaque glass to enter the office from the waiting area that was closed. As seen on the video, the office was dark with the exception of some light emanating from a computer screen at the reception desk. The following is a summary of the video:

- 00:40-00:59: Respondents pull up in the marked RMP and approach the front door of the office. An officer knocks on the front door. § 87(2)(b) steps to the side of the counter and then walks behind the desk and sits down at the computer that faces toward the lobby. Respondents begin to shine their flash lights inside the building.
- 01:00-01:06: Respondents shine their flashlights toward § 87(2)(b) who is seated in the reception station and leans back in his chair away from the light. He leans forward once the light is not in his direction.
- 01:07-01:24: Respondents continue to stand outside of the front doors. § 87(2)(b) remains seated, until he stands up and appears to acknowledge the officers.
- 01:25-01:34: § 87(2)(b) stands up and walks around the desk. He stops and raises his hand with one finger in the air toward the officers, and then walks off camera.
- 01:34-01:54: § 87(2)(b) is out of camera view for approximately 20 seconds. Respondents are still waiting outside at the front of the office.
- 01:55-02:02: § 87(2)(b) walks back to the front desk and appears to be on the phone. He remains behind the counter. Respondents shine their flashlights through the windows that are covered with shades. § 87(2)(b) steps away from the light that is aimed in his direction.
- 02:03-02:35: § 87(2)(b) walks back behind the desk. His cell phone is still raised up to his ear. He leans down to push the intercom button. Respondents are standing by the front door.
- 02:36-03:24: Respondent shines the flashlight into the window again toward § 87(2)(b). § 87(2)(b) stays standing behind the desk; it appears that he was speaking with Respondents. Respondents move away from the front door and shine their flashlights through the shaded window next to the desk. § 87(2)(b) walks away from the desk and goes to the back of the office, out of view of the camera.
- 03:25-05:17: Respondents continue to shine their flashlights into the office. § 87(2)(b) is out of view of this camera.
- 05:18-05:28: § 87(2)(b) walks back into frame. He appears to be on a cell phone. He leans over the counter to look out toward where Respondents are standing. He walks back to the back of the office, out of view of the camera.
- 05:29-08:40: § 87(2)(b) remains out of view of the camera angle.

§ 87(2)(b) explained that he spoke with the officers through the security system's intercom before going into the back of the office to call family and friends for advice. At trial,

§ 87(2)(b) described his conversation over the intercom as follows: "I answered the bell and said, 'Hello, can I help you?' And they (Respondents Choi and Lee) said, 'We need you to come outside.' He asked, 'Did someone call the police?' They said, 'No.' I said, 'Are there any warrants or anything like that?' They said 'no.' 'Did the alarm go off?' They said, 'No.'" (Tr. 21) He went on to testify that he did not feel comfortable going outside because they placed their flashlights in his face and he couldn't see anything. He further added that his hand went up, and he instantly thought, maybe they (Respondents) think he has something on him, so he felt uncomfortable. § 87(2)(b) testified that he felt his life may have been in danger. After "exhausting calling [his] friends and colleagues," he then called 911 and Internal Affairs and filed a report that he was being harassed by officers. He testified that while he was filing a complaint, he received a phone call from Respondent Lee, who § 87(2)(b) recalled threatened to break the security system if he did not come out to speak with the officers. Soon thereafter, Respondent Cameron and his driver arrived on scene. § 87(2)(b) eventually did open the door after 911 was "unable to help" and, at that point, provided his identification to the Respondents and spoke with them. After Respondents verified his ID, all the officers left. (Tr. 25-28)

§ 87(2)(b) testified that as a result of this incident, he shortened his business hours to close at 1830 hours on Mondays through Thursdays. (Tr. 19, 33) § 87(2)(b) has also filed a lawsuit against the Respondents and the City of New York after this incident. (Tr. 76)

Respondent Choi testified that on March 9, 2020, while in his RMP, stopped at a traffic light on 109th Street facing Columbus Avenue, he observed an individual wearing dark clothing walk into the dental office. Respondent Lee did not see this. (Tr. 103, 133) Because Respondent Choi observed the person walking into the dental office from behind, he could not provide much of a description except that the person was wearing dark clothing with a hood covering his/her

head. Respondent Choi thought it was "odd" because he never saw anyone walk into that location at that time of night (after midnight) before and was unaware of the business being open during his tour. He testified it was "part of [his] job" to investigate if the person he observed going into the office was supposed to be there or not. They pulled up and knocked on the door. Respondents Choi and Lee described the inside as dark, so they had to turn their flashlights on, and then they observed an individual "ducking" from them. They believed at that point that someone was hiding as they looked inside the office window with their flashlights. Respondent Lee stated he was unable to get a clear look at § 87(2)(b) face while he was still inside of the reception area. (Tr. 100-105, 107, 135) Respondent Lee recalled speaking with § 87(2)(b) through the intercom and asking him to open the door so they could speak with him outside, but "it wasn't kind of clear, it was staticky, and it was hard to hear." (Tr. 137-38) Respondent Choi also testified that later on, during the investigation, he looked up the dental office on his phone and saw there was a picture of § 87(2)(b) on the office website. (Tr. 121) However, he could not make out the face of the person inside of the dental office until § 87(2)(b) came out.

While outside, Respondent Choi stated he saw a 911 call was generated from the dentist's office, so they contacted their supervisor, Respondent Cameron. Respondent Lee called § 87(2)(b) using the phone number that was on the report. (Tr. 108, 139) Respondent Lee testified that § 87(2)(b) was "very angry, pretty much talking over [him]." (Tr. 139) He told § 87(2)(b) they needed to verify he was in fact who he said he was, and that, if he did not open the door and speak with them, they may need to find a way to get in and might have to get someone to take the door down. (Tr. 139-40) Both Respondents Choi and Lee testified that they believed, based upon their training, they had grounds to have a supervisor contact ESU for a forcible entry.

Respondent Cameron and his driver, Officer Sjoberg, responded to the dental office after Respondents Choi and IAB called for him to respond. (Tr. 159) Respondent Cameron stated that Respondents Choi and Lee informed him that the individual inside was “sitting down at a computer, they could not see who he – his face, after that initial interaction, he went to the back office where he was out of sight.” (Tr. 161) Shortly after Respondent Cameron arrived, Respondent Lee called § 87(2)(b) and had informed him ESU may need to be called to break the door down. (Tr. 165) § 87(2)(b) then opened the door to speak with them and all three Respondents activated their body-worn cameras. (CCRB Exs. 1-4) Respondent Cameron testified that he spoke with § 87(2)(b) and verified his identify after inspecting his ID. He explained that he needed to check the ID to ensure § 87(2)(b) was who he said he was because “everyday people lie to the police. It’s our job to determine what’s true and what’s not true, and they were investigating to determine how valid the statement was.” (Tr. 160) After the interaction concluded, Respondent Cameron did not provide § 87(2)(b) with a business card, explaining at trial that “we provide cards to members of the public, so they have a means to make a complaint about us,” and because § 87(2)(b) already contacted IAB to file a complaint, Respondent Cameron “knew he had [their] information already.” (Tr. 162) Respondents Choi and Lee also admitted that they did not provide their business cards to § 87(2)(b) (Tr. 127, 154)

As previously mentioned, § 87(2)(b) dental office is a street-level storefront with residences above it. Respondents Choi and Lee stated that they patrol this area frequently and have never seen the dental office open during their tours. Therefore, seeing someone inside after midnight, with the lights off, was an unusual occurrence. At trial, Respondent Choi acknowledged that after watching the surveillance video from inside of the office, what they believed to be happening from their point of view outside was not what was actually happening

inside. (Tr. 105) From Respondent Choi and Lee's point of view that night, it appeared that someone was trespassing or attempting to commit a burglary.

Specification 1: Unlawful Stop of Dr. § 87(2)(b)

Respondents are charged with stopping § 87(2)(b) without sufficient legal authority. For the reasons that follow, I find Respondents Not Guilty.

Patrol Guide 212-11 states that a "Terry Stop/Level 3 encounter is any encounter between a civilian and a uniformed member of service in which a reasonable person would not feel free to disregard the officer and walk away... A stop may be conducted only when a police officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a felony or Penal Law misdemeanor. The police officer may ask accusatory or pointed questions and detain the person while an expeditious investigation is conducted to determine if there is probable cause to arrest."

Respondents Choi and Lee observed an individual enter a dental office after midnight, during non-business hours, in an area where there had been commercial burglaries. Not only were commercial burglaries an ongoing precinct condition at the time, but it was late at night when such burglaries tend to occur. At the time that § 87(2)(b) entered his dental practice, he was casually dressed with a hood covering his head. Respondents Choi testified that he could not make out much about his appearance because he saw him from behind. According to his testimony, he did not see § 87(2)(b) enter the premises using a key. Moreover, the video evidence corroborates Respondent Choi's testimony given § 87(2)(b) position to the front door, it was highly unlikely that Respondents could see him use a key to enter. Despite the fact that there were no signs of forced entry, Respondents Choi and Lee did find it peculiar that someone entered the dental office after business hours and did not turn on the lights inside of the

office. Under the circumstances, Respondents Choi and Lee had a reasonable basis to further investigate the person who entered the dental office. *See People v. DeBour*, 40 N.Y.2d 210, 219-20 (1976).

Respondents Choi and Lee approached the dental office and noticed that it was dark inside, so they used their flashlights to assist them. Even with the aid of their flashlights, they could not fully see what was happening inside. What they could see through the small window in the waiting area, according to their credible testimony, was a person standing in the office and then ducking when the flashlight was aimed in his direction. It appeared to Respondent Choi that the person was attempting to hide. § 87(2)(b) testified that he attempted to communicate with the officers via his intercom system and inform them that he was the business owner, but he did not provide Respondents with identification when requested to do so nor did he open the door to speak to the officers face-to-face. Respondents' acted based upon a reasonable belief that the unknown individual was trespassing and/or committing a burglary inside the dental office.

Viewing the video footage captured inside the dental office, § 87(2)(b) actions seem innocuous. However, from the Respondents' vantage point that night, § 87(2)(b) actions described above were unusual and suspicious for a person purporting to be the business owner. The dental office was dark inside, the shades were drawn, and there were no patients in the waiting area or other indication that the office was open. Moreover, this coupled with § 87(2)(b) retreating into a back room, out of the officers' line of sight, instead of coming to the door to identify himself as the officers requested, heightened the Respondents' suspicion. A reasonable officer presented with same set of circumstances and armed with the same level of knowledge as Respondents would have a sufficient basis to believe that the person inside the office had committed or was about to commit the crime of trespass or burglary. Respondents

had an affirmative duty to further investigate and confirm or dispel their suspicions about the individual inside the dental office. Under the circumstances, I find that Respondents' actions did not constitute misconduct.

Specification 2: Unlawful Threat of Property Damage

With respect to the charge that Respondent Lee's statements that the door might need to be taken down if § 87(2)(b) did not present ID to the officers, I find that this did not constitute an unlawful threat of force. § 87(2)(b) testified that after he spoke with the officers through the security system's intercom, he went to the back of the office to call family and friends for advice. He stated he did not feel comfortable and felt his life was in danger. He then called 911 and filed a report that he was being harassed by officers. § 87(2)(b) recalled receiving a phone call from Respondent Lee, who "threatened" to break the security system if he did not come out to speak with the officers. § 87(2)(b) eventually did open the door to provide his identification to the Respondents and speak with them.

Respondent Lee acknowledged at trial that he did call § 87(2)(b) cell phone from the number he received on the radio run. He recalled § 87(2)(b) being angry and talking over him. Respondent Lee also testified that he told § 87(2)(b) on the phone that he needed to open the door so that they can verify his identify and that if he didn't comply, they would have to get someone to take down the door. (Tr. 140)

It is plausible that § 87(2)(b) perceived Respondent Lee's words as a threat to damage his property. However, the objective of Respondent Lee's warning was to induce voluntary compliance during a potentially dangerous situation, so that the officers would *not* have to resort to authorized measures to gain entry into the premises. This Tribunal, therefore, finds that Respondent Lee's actions do not rise to the level of misconduct. I further find that Respondent

Lee made a factual assertion to § 87(2)(b) which is demonstrably true: namely, that ESU can, under these circumstances, effect a forcible entry into a premise, which invariably necessitates breaching the portal to the subject premise. Thus, I find that Respondent Lee's statement to § 87(2)(b) was an assertion of his intention to follow police protocol rather than an attempt to gratuitously intimidate § 87(2)(b). Accordingly I find Respondent Lee not guilty.

Furthermore, I disagree with CCRB's assessment that Respondents Choi and Cameron are somehow accessorially liable for Respondent Lee's actions. Respondent Choi and Respondent Cameron's mere presence while Respondent Lee spoke with § 87(2)(b) on the phone does not make them complicit under these circumstances. There was no evidence in the record that either Respondent Choi or Respondent Cameron knew or discussed what Respondent Lee would say to § 87(2)(b) prior to him making that phone call. Nonetheless, having found that the warning issued by Respondent Lee on the phone to § 87(2)(b) was justified, I do not find Respondent Choi or Respondent Cameron guilty of any misconduct related to the phone call made by Respondent Lee.

Specification 3: Failing to Provide Right to Know Business Card

Administrative Guide 304-11 prescribes that, in accordance with the New York City Right to Know Act, a business card is to be offered to members of the public upon conclusion of certain law enforcement activities. A.G. 304-11 goes on to define these law enforcement activities and the definition includes, "a stop where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime and where a reasonable person would not feel free to end the encounter (Level 3 Encounter)." This Tribunal has already determined that a Level 3 encounter occurred on the date in question.

As such, it follows that the Respondents were required under the circumstances to offer to provide a business card to § 87(2)(b) after the encounter concluded, and they did not do so.

At trial, each Respondent offered a different reason for their failure to offer to provide § 87(2)(b) with a business card. When Respondent Choi was asked why he did not offer § 87(2)(b) a business card, he responded that he "decided to leave because he (§ 87(2)(b)) was still angry and just wouldn't listen to us, so to not further escalate, we just decided to leave." (Tr. 112). He further stated on cross-examination that it was his understanding that he did not have to provide a business card to § 87(2)(b) unless it was requested. Similarly, Respondent Lee testified that he did not know he was supposed to provide a business unless the person stopped requested it. Since § 87(2)(b) never requested a business card, Respondent Lee did not provide one to him. Respondent Cameron testified that while he is familiar with the Department's policy on business cards, his understanding was that "we provide cards to members of the public, so they have a means to make a complaint about us." (Tr. 162) In his view, § 87(2)(b) had already filed a complaint with IAB prior to his arrival on scene so Respondent Cameron knew that he had the information needed to make a complaint and therefore a business card was not necessary.

All three Respondents admitted that they did not offer to provide § 87(2)(b) with a business card at the conclusion of their interaction with him because they did not believe it was necessary. Ignorance of the requirements of Patrol Guide and New York City law as it relates to providing members of the public with business cards does not negate guilt. The Respondents are required to know their duties and responsibilities when interacting with members of the public and follow the Department's guidelines with fidelity. A deviation from the Department's protocols can result in the erosion of public trust and confidence in law enforcement. I therefore find all three Respondents Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. See 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondents Lee, Choi and Cameron, who were appointed to the Department on July 8, 2008, July 10, 2006 and July 9, 2013, respectively, and all of whom have no formal disciplinary history, have each been found Guilty of Specification 3, failing to offer to provide § 87(2)(b) with a business card without police necessity.

The CCRB, in its penalty breakdown, recommended that the aggravated penalty of 5 days for Specification 3 be imposed against each Respondent. In seeking the aggravated penalty for this misconduct, they relied on what they characterized as the aggravated factors of the extended duration of the encounter and the significant interference with § 87(2)(b) emotional, physical, and financial well-being. While I agree that § 87(2)(b) seems greatly impacted by his interaction with the Respondents, I do not agree that the Respondents' actions constitutes egregious misconduct. As such, I am not persuaded that there are any elements here that warrant the imposition of an aggravated penalty.

Nonetheless, there must be some liability for Respondents' lack of adherence to this straightforward rule to provide identifying information to members of the public upon the conclusion of law enforcement activities. The community has every right to expect and demand the highest level of accountability from the Department, as well as from individual members of

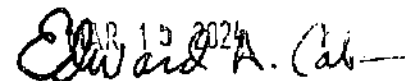
service. This is especially important when there has been a police interaction fraught with tension as was the case here. Offering to provide a member of the public with a Right-To-Know Business Card after such an encounter is essential to retaining public confidence and can reduce the harmful ramifications of such encounters. I am therefore recommending the presumptive penalty of three (3) vacation days for each Respondent.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPROVED



EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

December 29, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Police Officer Eugene Choi (DADS #: 2022-24799), Police Officer Thomas Lee (DADS #: 2022-24800), and Sergeant Kevin Cameron (DADS #: 2022-24801)

Commissioner Caban:

The above-referenced case was tried on November 8, 2023¹, by Administrative Prosecutor Theresa Freitas, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Vanessa Facio-Lince, dated December 15, 2023. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer Eugene Choi, was charged with the following:

1. Police Officer Eugene Choi, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

PG 212-11, page 6, paragraph 20—INVESTIGATIVE ENCOUNTERS

2. Police Officer Eugene Choi, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) property without sufficient legal authority.

PG 203-10, page 1, paragraph 5—PUBLIC CONTACT: PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06 page 1, paragraph 1—PROHIBITED CONDUCT]

¹ The draft decision incorrectly states that Police Officer Choi, Police Officer Lee, and Sergeant Cameron "appeared before me on November 7, 2023" (Draft Decision pages 3-4). November 7, 2023, was Election Day and was therefore a holiday for New York City employees. The trial was conducted the next day, November 8, 2023.

3. Police Officer Eugene Choi, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

PG 203-09, page 1, paragraph 1—PUBLIC CONTACT: GENERAL [now encompassed by Administrative Guide 304-11—COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT]

Respondent, Police Officer Thomas Lee, was charged with the following:

1. Police Officer Thomas Lee, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

PG 212-11, page 6, paragraph 20—INVESTIGATIVE ENCOUNTERS

2. Police Officer Thomas Lee, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) property without sufficient legal authority.

PG 203-10, page 1, paragraph 5—PUBLIC CONTACT: PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06 page 1, paragraph 1—PROHIBITED CONDUCT]

3. Police Officer Thomas Lee, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

PG 203-09, page 1, paragraph 1—PUBLIC CONTACT: GENERAL [now encompassed by Administrative Guide 304-11—COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT]

Respondent, Sergeant Kevin Cameron, was charged with the following:

1. Sergeant Kevin Cameron, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.

PG 212-11, page 6, paragraph 20—INVESTIGATIVE ENCOUNTERS

2. Sergeant Kevin Cameron, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he threatened to damage § 87(2)(b) property without sufficient legal authority.

PG 203-10, page 1, paragraph 5—PUBLIC CONTACT: PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06 page 1, paragraph 1—PROHIBITED CONDUCT]

3. Sergeant Kevin Cameron, on or about March 9, 2020, at approximately 0020, while assigned to 024 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without police necessity.

PG 203-09, page 1, paragraph 1—PUBLIC CONTACT: GENERAL [now encompassed by Administrative Guide 304-11—COMPLIANCE WITH THE NEW YORK CITY RIGHT TO KNOW ACT]

The Court found Police Officer Choi, Police Officer Lee, and Sergeant Cameron Not Guilty of Specification One (1) and Specification Two (2). It is respectfully requested that you reject ADCT Facio-Lince's findings and find Police Officer Choi, Police Officer Lee, and Sergeant Cameron, Guilty of Specification One (1) and Specification Two (2) and impose CCRB's penalty recommendation of the forfeiture of fifteen (15) vacation days for Specification One (1) and the forfeiture of twenty (20) vacation days for Specification Two (2).

The Court found Police Officer Choi, Police Officer Lee, and Sergeant Cameron Guilty of Specification Three (3) and recommended a penalty of the forfeiture of three (3) vacation days be imposed. It is respectfully requested that you accept ADCT Facio-Lince's findings as to guilt but reject ADCT Facio-Lince's penalty recommendation and impose CCRB's penalty recommendation of the total forfeiture of five (5) vacation days for Specification Three (3). CCRB respectfully requests that you accept and impose CCRB's total penalty recommendation of the forfeiture of forty (40) vacation days as to all three (3) specifications against Police Officer Choi, Police Officer Lee, and Sergeant Cameron.

STATEMENTS OF FACTS

CCRB adopts the statements of facts articulated in ADCT Facio-Lince's Draft Decision.

ARGUMENT

CCRB disagrees with the Court's finding that Police Officer Choi, Police Officer Lee, and Sergeant Cameron were Not Guilty of Specification One (1) and its conclusion that a "reasonable officer presented with same set of circumstances and armed with the same level of knowledge as Respondents would have a sufficient basis to believe that the person inside the office had committed or was about to commit the crime of trespass or burglary" (Draft Decision page 11).

The evidence submitted by CCRB clearly proves by a preponderance of the evidence that Police Officer Choi, Police Officer Lee, and Sergeant Cameron stopped § 87(2)(b) without sufficient legal authority. While Police Officer Choi and Police Officer Lee stated that their initial reason for stopping § 87(2)(b) was that he entered a business after midnight, neither officer stated that § 87(2)(b) performed any action while opening the door to the office that would indicate he was making an unlawful entry, nor did the officers state that upon inspection of the door there was any damage that might be suggestive of an unlawful entry (Trial Transcript pages 117, 118, 128-129, 149, 164). An individual entering a business late at night, without displaying any signs that their entry was forced or otherwise unlawful, is an innocent action that is not indicative of criminal activity. While the lights were off in the office, there was some light illuminating the interior of the office as testified to by Police Officer Choi (Trial Transcript pages 103-104). While it may be considered out-of-the-ordinary for an individual to enter a

commercial establishment after midnight, there is nothing inherently indicative of criminality about such an entry in general.

Video surveillance footage of § 87(2)(b) office does not show § 87(2)(b) performing any type of movements that could be construed by the officers as “ducking” when the officers shined their flashlights at him. Instead, § 87(2)(b) moves back slightly, before moving forward again. While § 87(2)(b) did move backwards when the officers flashed a flashlight over his face, § 87(2)(b) immediately returned to his original position where the officers could see him, and thus the officers’ categorization of § 87(2)(b) movements as suspicious or indicative of criminality was incorrect. While it may be unusual for § 87(2)(b) to be entering an apparently closed business after midnight, moving away from the beam of the officer’s flashlight, none of these things taken together or individually indicate any level of criminality by § 87(2)(b) to justify this stop of § 87(2)(b) by Police Officer Choi, Police Officer Lee, and Sergeant Cameron.

During this stop of § 87(2)(b) which went on for quite some time, Police Officer Choi went to § 87(2)(b) business’, § 87(2)(b) website and saw § 87(2)(b) name and picture on the website (Trial Transcript pages 121, 123-124, 125 and Police Officer Choi’s BWC footage). Police Officer Lee was also able to contact § 87(2)(b) on § 87(2)(b) cell phone after § 87(2)(b) had called 911 (Trial Transcript pages 26, 27, 113). However, despite all of this information they had, Police Officer Choi, Police Officer Lee, and Sergeant Cameron still assumed that § 87(2)(b) had committed, was committing, or was about to commit a crime. Nothing § 87(2)(b) did that night rose to level of reasonable suspicion and therefore, Police Officer Choi, Police Officer Lee, and Sergeant Cameron must be found guilty of Specification One (1) and CCRB’s penalty recommendation of the forfeiture of fifteen (15) vacation days should be imposed for Police Officer Choi, Police Officer Lee, and Sergeant Cameron.

CCRB also disagrees with the Court’s finding that Police Officer Choi, Police Officer Lee, and Sergeant Cameron were Not Guilty of Specification Two (2) and its conclusion that “Respondent Lee’s statements that the door might need to be taken down if § 87(2)(b) did not present ID to the officers...did not constitute an unlawful threat of force” (Draft Decision page 12). The evidence submitted by CCRB clearly proves by a preponderance of the evidence that Police Officer Choi, Police Officer Lee, and Sergeant Cameron threatened to break down the door of § 87(2)(b) office if he did not exit the office and present his ID without sufficient legal authority.

While the Court states that “it is plausible that § 87(2)(b) perceived Respondent Lee’s words as a threat to damage his property” but rather “the objective of Respondent Lee’s warning was to induce voluntary compliance during a potentially dangerous situation” (Draft Decision, page 12), CCRB disagrees. Police Officer Lee admitted to threatening to call ESU and have them break the door down (Trail Transcript page 151). Both Sergeant Cameron and Police Officer Choi testified that Police Officer Lee also threatened § 87(2)(b) that they would call ESU and have them break down the door to gain entry (Trial Transcript pages 121-122, and 165). § 87(2)(b) did perceive this as a threat because it was, in fact, a threat and Police Officer Choi, Police Officer Lee, and Sergeant Cameron were not justified in threatening to damage § 87(2)(b) property. Therefore, Police Officer Choi, Police Officer Lee, and Sergeant Cameron must be found guilty of Specification Two (2) and CCRB’s penalty recommendation of the forfeiture of twenty (20) vacation days should be imposed for Police Officer Choi, Police Officer Lee, and Sergeant Cameron.

Police Officer Choi, Police Officer Lee, and Sergeant Cameron were all found guilty of failing to provide their business cards to § 87(2)(b) as required by the New York City Right to Know Act. Considering the misconduct at issue in this case, the Court’s recommended penalty of the forfeiture of

three (3) vacation days for each respondent should be rejected and CCRB's penalty recommendation of the forfeiture of five (5) vacation days should be accepted and imposed against Police Officer Choi, Police Officer Lee, and Sergeant Cameron for Specification Three (3).

CCRB requests that the aggravated penalty of the forfeiture of five (5) vacation days for Specification Three (3) be imposed upon Police Officer Choi, Police Officer Lee, and Sergeant Cameron. There are numerous aggravating factors to be considered in this case. First, this encounter with § 87(2)(b) went on for an extended period and caused significant interference and distress to § 87(2)(b). Second, Police Officer Choi, Police Officer Lee, and Sergeant Cameron recklessly disregarded the New York City Right to Know Act. Police Officer Choi, Police Officer Lee, and Sergeant Cameron have all been members of service for a combined total of forty-two (42) years—they should be well versed in their requirements to provide their business card to a civilian that they conduct a *Terry* stop on. For those reasons, it is requested that you impose CCRB's penalty recommendation of the forfeiture of five (5) vacation days for Specification Three (3) against Police Officer Choi, Police Officer Lee, and Sergeant Cameron.

CONCLUSION

For all the aforementioned reasons, CCRB requests that you reject ADCT Facio-Lince's findings and find Police Officer Choi, Police Officer Lee, and Sergeant Cameron Guilty of Specification One (1) and Specification Two (2) and impose CCRB's penalty recommendation of the forfeiture of fifteen (15) vacation days for Specification One (1) and the forfeiture of twenty (20) vacation days for Specification Two (2) for all three (3) Respondents. CCRB also requests that you accept ADCT Facio-Lince's findings as to guilt but reject ADCT Facio-Lince's penalty recommendation and impose CCRB's penalty recommendation of the total forfeiture of five (5) vacation days for Specification Three (3). CCRB respectfully requests that you accept and impose CCRB's total penalty recommendation of the forfeiture of forty (40) vacation days as to all three (3) specifications against Police Officer Choi, Police Officer Lee, and Sergeant Cameron.

Respectfully submitted,

Theresa Freitas

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Prosecutor

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